

Layeeq Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2019 · Writ-C No. 24866 of 2019 · **Writ disposed; new-connection application to be considered within four weeks.**

HEADNOTE

On a writ seeking a direction to consider an application for a new electricity connection, the Allahabad High Court, recording the licensee's counsel's statement that the application would be considered in accordance with the U.P. Electricity Supply Code, 2005, disposed of the petition by directing the concerned respondent to consider and dispose of the application dated 11.07.2019 within four weeks of production of a certified copy. Entitlement to supply was not decided on merits.

FACTUAL SUMMARY

Layeeq Khan petitioned the Allahabad High Court for a direction to respondent no. 2 to consider his 11 July 2019 application for a new electricity connection. Counsel for the petitioner, for respondents 2 and 3, and the Standing Counsel were heard. The licensee's counsel stated that the application would be considered in accordance with law and disposed of within four weeks under the rules and guidelines of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

new connection application

HOLDING

A writ seeking consideration of a new-connection application is disposed of by directing the licensee to consider and dispose of the application in accordance with the U.P. Electricity Supply Code, 2005, within four weeks of production of a certified copy; entitlement to the connection is not decided on merits. ¶ 1

FLAG Order invokes the Supply Code 2005 generally without citing a clause.

PRINCIPLE TAGS

relegate-to-statutory-remedy On a writ seeking a direction to consider an application for a new electricity connection, the Allahabad High Court, recording the licensee's counsel's statement that the application would be considered in accordance with the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW ELECTRICITY CONNECTION

The Court directed time-bound consideration under the Supply Code without deciding entitlement. ¶ 1